

After Recording Return To:

WBW Development, Ltd.
3000 Illinois Ave., Ste. 100
Killeen TX 76543

**FIRST AMENDMENT
TO DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS**

Yowell Ranch

THIS FIRST AMENDMENT TO DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS ("Amendment") is made as of the Effective Date shown below by WBW Development, Ltd., a Texas limited partnership ("Declarant.")

RECITALS

A. On or about January 15, 2010, Declarant made that certain Declaration of Covenants, Conditions and Restrictions of record at Instrument #2010-00002251 in the Official Public Records of Bell County, Texas ("Original Declaration.")

B. Declarant still owns real property subject to the Declaration.

C. Declarant now desires to amend the Declaration as provided herein to add additional property to be subject to the Declaration, and to more clearly define the rights and obligations of Builders in the Property.

NOW, THEREFORE, pursuant to the authority reserved to Declarant under Article 10.1 and Article 12.2 of the Declaration, Declarant hereby makes the following supplemental amendments to the Declaration:

1. Capitalized terms used herein shall have the meaning ascribed to them in the Declaration unless the context clearly indicates otherwise.

2. Exhibits "A" through "E" to the Declaration are amended to read as reflected in Exhibits "A" through "E" attached to this instrument.

3. Article I of the Declaration is supplemented by the addition of the following paragraph:

1.17.1 **"Developer Costs"** means all costs of (i) developing the Property, including initial construction or installation of infrastructure (such as roadways, utility lines, subdivision mailboxes, street lights or signs, etc.); (ii) initial construction or installation of any Common Areas or other amenities for the benefit of the Owners or the Property; and (iii) repairing or replacing any Common Areas or other amenities for the benefit of the Owners or the Property to the extent that the need for such repair or replacement is attributable to defects in materials or workmanship appearing within one (1) year of the initial installation or construction.

4. Article 4.5 of the Declaration is amended in its entirety to read as follows:

4.5. Obligation to Pay Budget Deficits. Until such time as at least seventy-five percent (75%) of all Lots in the Property are owned by Owners other than Declarant and any Builder, each Builder that owns or has entered a then valid contract to purchase one or more Lots (each such Lot then owned or under contract for sale to a Builder being referred to hereinafter as a "Builder Lot") shall be required to pay such Builder's proportionate share of the difference between the Association's annual operating expenses and the assessments received by the Association (the "Budget Deficit"). Each Builder's proportionate share of the Budget Deficit shall be equal to the Budget Deficit, multiplied by a fraction, the numerator of which shall be the total Builder Lots then owned or under contract for sale to such Builder, and the denominator of which shall be the then current total of all Builder Lots in the Property. Each Builder shall pay its proportionate share of the Budget Deficit within fifteen (15) days following receipt of an invoice from the Association for such amount, which invoice(s) may not be sent more often than quarterly based on the Association's fiscal year. Notwithstanding the foregoing, if any Budget Deficit is the result of the failure or refusal of an Owner or Owners to pay their annual assessment or special assessments, the Association shall diligently pursue (and the Declarant may also pursue at its option) all reasonable remedies against such defaulting Owners and will promptly refund such amounts so collected, if any, to the Builders (in proportion to each Builder's proportionate share of the Budget Deficit last paid by such Builder), or shall credit such amount so collected against the Budget Deficit amount next due or payable by Builders pursuant to this provision. Further, notwithstanding any other provision of this Declaration to the contrary, no Builder shall have any obligation to pay Developer Costs or any Budget Deficits accrued prior to Builder's initial acquisition of a Builder Lot in the Property, and no Builder shall have any liability to the Association, Declarant or any Owner for such sums.

5. The last sentence of Article 6.1 of the Declaration is hereby amended to read as follows:

Declarant hereby designates that Pulte Homes of Texas, L.P., a Texas limited partnership ("Pulte") and Continental Homes of Texas, L.P., doing business as D.R. Horton ("Horton") are exempt from the ACA approval requirements described above.

6. The last sentence of Article 7.8 of the Declaration is hereby amended to read as follows:

Declarant hereby designates that Pulte and Horton have the right to erect signs or billboards as described above.

7. The last sentence of Article 7.9 of the Declaration is hereby amended to read as follows:

Declarant hereby designates that Pulte, Horton and other Builders may store materials incident to construction of improvements on Lots during construction by such Builders as described above.

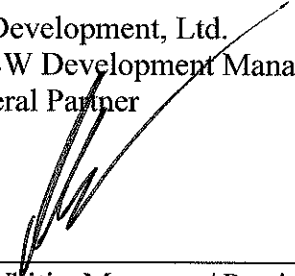
8. Article 12.2a of the Declaration is supplemented by the addition of the following sentence after the last sentence:

Notwithstanding the foregoing or any other provision herein to the contrary, so long as Horton owns any Lot or has a valid contract to purchase any Lot within the Property, Declarant shall not modify the Declaration in a manner that materially and adversely impacts such Lots or the Property without the prior written consent of Horton.

9. In the event of an inconsistency between this Amendment and the terms of the Declaration, this Amendment shall govern. Except as expressly provided herein, the Declaration has not been amended or modified, and all terms, covenants, conditions and restrictions of the Declaration shall continue in full force and effect with respect to the entire Property. Hereafter, all references to the Declaration shall be deemed to be references to the Declaration as amended and modified by this instrument. The Declaration as herein amended is hereby ratified and approved.

10. This Notice shall be EFFECTIVE from and after the date of the notary acknowledgment shown below.

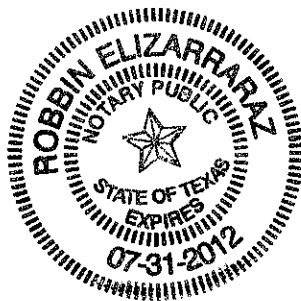
WBW Development, Ltd.
By: WBW Development Management, LLC,
Its General Partner

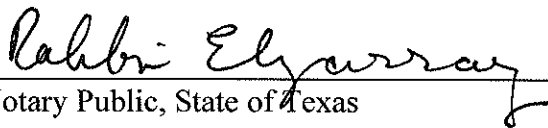
By: 
Bruce Whitis, Manager / President

STATE OF TEXAS

COUNTY OF BELL

This instrument was acknowledged before me on the 11 day of January, 2011, by Bruce Whitis, Manager and President of WBW Development Management, LLC, a Texas limited liability company, in its capacity as General Partner of WBW Development, Ltd., a Texas limited partnership, on behalf of said limited partnership, and as the act and deed thereof.




Notary Public, State of Texas

Pulte Consent

The undersigned acknowledges that the foregoing instrument does not modify the Declaration in a manner that materially and adversely impacts the Lots or Property owned by the undersigned or subject to a valid contract of purchase in favor of the undersigned, and consents to the terms and provisions of such instrument.

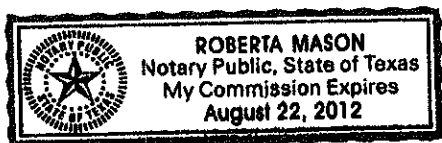
Pulte Homes of Texas, L.P., a Texas limited partnership

By: Pulte Nevada, LLC, a Delaware limited liability company, its General Partner

By: *BA BA*
Brent Baker, Vice President Land

STATE OF *Texas*
COUNTY OF *Texas*

This instrument was acknowledged before me on the *10th* day of January, 2011, by Brent Baker, *V.P. of Land* of Pulte Nevada, LLC, a Delaware limited liability company, in its capacity as General Partner of Pulte Homes of Texas, L.P., a Texas limited partnership, on behalf of said limited partnership, and as the act and deed thereof.



Roberta Mason
Notary Public, State of *8-22-12*

EXHIBIT "A"**The Property**

Lots 1 through 26 and Tracts 4, 5, and 7, Block 1; Lots 1 through 15 and Tract 6, Block 2; Lots 1 through 97 and Tracts 1 and 3, Block 3; Lots 1 through 226, Block 4; and Lots 1 through 16 and Tract 2, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Lots 1 through 27 and Tract 1, Block 1; Lots 1 through 113 and Tract 2, Block 2; Lots 1 through 117, Block 3; Lots 1 through 24, Block 4; and Lots 1 through 26 and Tract 3, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

EXHIBIT "B"

Common Areas

Tracts 4 and 5, Block 1; Tract 6, Block 2; Tracts 1 and 3, Block 3; and Tract 2, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tract 1, Block 1; Tract 2, Block 2; and Tract 3, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

EXHIBIT "C"**SUBDIVISION FENCING EASEMENT**

An easement for subdivision fencing for the benefit of the Declarant and the Association, (i) adjacent to Featherline Road, being five feet (5') in width, and located within and along the westerly boundary lines of Lot 1 of Block 1, Lot 1 and Lots 37 through 51 of Block 3, and Lots 1 through 8 of Block 5; and (ii) adjacent to Stagecoach Road, being five feet (5') in width, and located within and along the northerly boundary lines of Lots 22 through 26 of Block 1, and Lot 1 of Block 2 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

An easement for subdivision fencing for the benefit of the Declarant and the Association, adjacent to Featherline Road, being five feet (5') in width, and located within and along the westerly boundary lines of Lot 1 and Lots 95 through 113, Block 2; and Lot 1, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

EXHIBIT "D"**Entry Signs**

Tracts 4 and 5, Block 1; Tract 6, Block 2; Tract 3, Block 3; and Tract 2, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tract 2, Block 2; and Tract 3, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C & D, Plat Records of Bell County, Texas.

EXHIBIT "E"

Open Space Area

Tract 1, Block 3 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tract 1, Block 1 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

**** Electronically Filed Document ****

**Bell County, Tx
Shelley Coston
County Clerk**

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Parties:

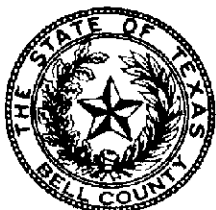
Direct- WBW DEVELOPMENT LTD
Indirect- YOWELL RANCH

Receipt Number: 96772
Processed By: Melissa Evans

(Parties listed above are for Clerks reference only)

***** THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property Records in Bell County, Texas

**Shelley Coston
Bell County Clerk**

A handwritten signature in cursive script that reads "Shelley Coston".